

**BEFORE THE
GOVERNING BOARD OF THE
ROSELAND SCHOOL DISTRICT
SONOMA COUNTY
STATE OF CALIFORNIA**

In the Matter of the Statement of Reduction in Force

Involving:

Certain Certificated Employees, Respondents.

OAH No. 2025040108

PROPOSED DECISION

Administrative Law Judge Michelle Dylan, State of California, Office of Administrative Hearings, State of California, heard this matter on April 23 and 24, 2025, by videoconference.

Erin M. Hamor and Sinead M. McDonough, Attorneys at Law, represented the Roseland School District (District).

Holly A. Latz, Attorney at Law, represented respondents Carrie Atherley, Brendan Boylan, Carolina Duran, Gwen Neu, Ana Talavera, and Sarah Tendall (collectively, "the represented respondents").

Jonathan Bobadilla Juarez, Alaina Mitchell, and Patrick Reinking were served by the District with layoff notices but failed to timely return notices of participation and failed to appear at hearing, therefore they are no longer parties to this action.

Respondents Atherley, Duran, Neu, Talavera, and Tendall settled with the District during the course of the hearing and withdrew their hearing requests, therefore they are no longer parties to this action. Respondent Melissa Bastianon requested a hearing and filed a notice of participation but did not appear at the hearing. Therefore, her default was entered pursuant to Government Code section 11520, and the matter proceeded in her absence. The hearing proceeded as to respondent Boylan only.

The matter was continued pursuant to Government Code section 11524 from April 23, 2025, to April 24, 2025, for completion of the hearing, and until April 30, 2025, for submission of closing briefs, which were timely submitted and marked for identification as Exhibits 101, S, and T. The record was closed, and the matter was submitted for decision on April 30, 2025.

FACTUAL FINDINGS

Jurisdictional Matters

1. On March 4, 2025, the District's Board of Education (Board) adopted Resolution No. 25-19 entitled "Resolution of Intention to Terminate Certificated Employees Due to a Reduction of Particular Kinds of Services" (Resolution No. 25-19), reducing or discontinuing particular kinds of certificated employee services for the 2025-2026 year, "in the best interest of the District," and directing the District's Superintendent or designee to send appropriate notices to all employees whose positions would be affected by the reduction or discontinuation of services. Resolution No. 25-19 mandated a reduction or discontinuation of particular kinds of services in the amount of 12.4 full-time equivalent (FTE) positions for the 2025-2026 school year.

2. Resolution No. 25-19 identified the certificated services to be reduced for the 2025-2026 school year, and their corresponding FTEs, as follows:

- Single Subject Physical Education Teacher (2.0 FTE)
- Teacher on Special Assignment (0.40 FTE)
- Secondary Counselor (3.0 FTE)
- Director of College and Career (2.0 FTE)
- School Psychologist (0.50 FTE)
- Intervention Teacher (3.0 FTE)
- Special Day Class Teacher (1.0 FTE)
- Director of Whole Child (0.50 FTE)
- Director of Human Resources (one position reduced by 10 contract days)
- Director of Secondary Education (one position reduced by 10 contract days)
- High School Principal (two positions reduced by 5 contract days each)

3. On March 12, 2025, the Board passed Resolution No. 25-23, authorizing the elimination of an additional 1.0 FTE certificated services (Single Subject Foundational Level Math Teacher) for the 2025-2026 school year, and directing the District's Superintendent or designee to send appropriate notices to all relevant employees.

4. The services set forth in Resolutions Nos. 25-19 and 25-23 are particular kinds of services that may be reduced or discontinued within the meaning of

Education Code section 44955. The District's Director of Human Resources Jenny Young, Chief Business Officer (CBO) AJ Giersch, and Director of Secondary Education Haley Piazza testified that the reduction of services is necessary due to budgetary concerns. Roseland Charter School is experiencing deficit spending and the Budget Advisory Committee recommended that \$1.5 million be cut from Roseland Charter School's budget for the 2025-2026 school year. The recommended layoffs are related to the reduction in the budget. The parties stipulated that they do not contest that the District has a financial basis for the reduction of particular kinds of services at issue in this hearing.

5. Pursuant to Education Code section 44955, subdivision (b), when a governing board reduces particular kinds of services resulting in a decrease in the number of certificated, permanent employees, the services of a permanent employee may not be terminated if another employee with less seniority is retained to render a service that the more senior employee is "certificated and competent to render."

6. Education Code section 44955, subdivision (c), provides that the governing board shall make assignments and reassignments in such a manner that employees shall be retained to render any service which their seniority and qualifications entitle them to render.

7. Education Code section 44955, subdivision (d)(1), provides that a school district may deviate from terminating a certificated employee in order of seniority (skipping) where the district demonstrates a specific need for personnel to teach a specific course or course of study, and the certificated employee proposed to be skipped has special training and experience necessary to teach that course of study, which others with more seniority do not possess.

8. On March 12, 2025, the Board adopted Resolution No. 25-24, "Resolution to Adopt Competency Criteria for Certificated Reductions" (Competency Resolution). The Competency Resolution provides that,

for the 2025-2026 school year only, to meet the requirements of Education Code section 44955, subdivision (b), "competent," in addition to other requirements previously adopted by the Board, shall be:

A. To teach Math in grades 9-12, a teacher must possess a Single Subject: Mathematics teaching credential, and be credentialed to teach all levels of mathematics courses offered in grades 9-12, up to and including Calculus.

BE IT FURTHER RESOLVED, for the 2025-2026 school year only, to meet the requirements of Education Code section 44955, the Board of Trustees determines the needs of the District and the students by establishing the following skipping criteria:

A. To teach Math in grades 9-12, a teacher must possess a Single Subject: Mathematics teaching credential, and be credentialed to teach all levels of mathematics courses offered in grades 9-12, up to and including Calculus.

9. The seniority date of certificated employees is determined in accordance with Education Code section 44845, which provides: "Every probationary or permanent employee employed after June 30, 1947, shall be deemed to have been employed on the date upon which he first rendered paid service in a probationary position." The

District compiled a seniority list and sent it to all certificated employees and the union, Roseland Educators Association (REA), to confirm its accuracy as discussed in Factual Finding 34.

10. Prior to March 15, 2025, Young served 18 certificated employees with a written "Notice of Recommendation That Services Will be Terminated Due to a Reduction in Force" (Notice), advising them that it had been recommended to the Board that their services would not be required for the 2025-2026 school year, pursuant to Education Code sections 44949 and 44955. A copy of Resolution Nos. 25-19 or 25-23 (each applicable resolution) was served with each Notice.

11. On March 14, 2025, Young notified the Board as to which members of certificated staff were given layoff notices.

12. Ten of these employees timely filed Requests for Hearing.

13. On April 2, 2025, Young signed the District Statement of Reduction in Force in her official capacity as the Director of Human Resources of the District.

14. On April 2, 2025, all employees who requested hearings, including respondent Boylan, were sent a Reduction in Force (RIF) Packet, which included: a Statement to Respondent, the District Statement of Reduction in Force, copies of relevant Education and Government Code sections, and a Notice of Participation in Reduction of Force Hearing form. All employees who requested a hearing were served with a Notice of Hearing informing them that their hearing would take place on April 23, 2025, even if the employee had not submitted a Notice of Participation form.

15. Of the employees who were sent the RIF packet, all employees other than respondent Boylan either failed to return a notice of participation, failed to appear at hearing, or settled with the District during the course of the hearing.

16. Respondent Boylan is a permanent certificated employee of the District. The parties stipulated that respondent Boylan was timely and properly served with the notice of layoff and RIF packet, and timely submitted a request for hearing and a notice of participation to the District.

17. Jurisdiction for the subject proceedings exists pursuant to Education Code sections 44949 and 44955, and all notices and other requirements of those sections were provided as required.

Cause for Reduction or Discontinuation of Services and Actions Taken by the District

18. The District has a charter school (Roseland Charter School (charter school)) which maintains three campuses, Roseland Accelerated Middle School (RAMS), Roseland University Preparatory (RUP) serving grades 9 through 12, and Roseland College Preparatory (RCP) serving grades 7 through 12. RUP has been operating for approximately 20 years and serves 465 students during this school year. RCP is newer and serves 410 students during this school year. RUP and RCP were created to serve students by helping them both graduate high school and have the opportunity to attend a University of California (UC) or California State University (CSU) college or university. Many of RUP and RCP's graduating students are first generation college students.

19. Young, Giersch, and Piazza testified credibly at hearing about the reason for the District's layoffs. Young and Piazza testified credibly about the actions taken by

the District to carry out the Reduction Resolutions and the need for the competency and skipping criteria. Young has worked for the District for nearly 25 years and is in her third year as the director of human resources. Young holds an administrative services credential and a multiple subject teaching credential. Piazza has been with the District for nearly 20 years and is in her second year as the director of secondary education. Piazza currently oversees site programming and curriculum at RUP and RCP. Giersch manages the finances and prepares the budget for the District and Roseland Charter School.

20. The District acts as the authorizer for the charter school, employs the charter school employees, and prepares the budget for the charter school. Services at the charter school were identified for reduction in this matter.

21. The District adopted Resolutions Nos. 25-19 and 25-23 in order to reduce particular kinds of services for the 2025-2026 school year. Giersch reviewed the charter school's first and second interim financial reports and credibly testified that the reduction in certificated services adopted in the Board's resolutions is necessary due to budgetary concerns. The charter school is experiencing deficit spending of approximately \$5.1 million for the current school year. Without major reductions, it is projected that the charter school will have a negative net position in the 2028-2029 school year, and will not be able to offer educational services beyond that point. Staffing is a significant cost to the District and the level of staffing is no longer fiscally viable. As a result, the District determined it necessary to reduce or eliminate a number of services, including certificated services currently provided at both RUP and RCP. A Budget Advisory Committee was formed in October 2024. The committee recommended that \$1.5 million be cut from the charter school budget for next year.

The committee also recommended that the RCP site be closed and that RCP be consolidated into RAMS and RUP in the 2026-2027 school year.

22. The reduction or elimination of the identified particular kinds of services relates solely to the welfare of the schools in the District and its students.

23. Prior to serving layoff notices on its employees, the Board considered anticipated certificated attrition (resignation, retirements, non-reelections) known as of March 15, 2025. In a layoff proceeding like this, a governing board need only consider positively assured attrition which occurs prior to the March 15 layoff notice deadline, not thereafter. (*San Jose Teachers Association v. Allen* (1983) 144 Cal.App.3d 627, 635.)

COMPETENCY AND SKIPPING CRITERIA

24. The District established skipping and competency criteria that takes into account seniority and credentialing. Those who meet the criteria and can teach the full range of mathematics needed by the District, including Mathematics 1, 2, and 3, up to and including Calculus, are considered competent and will be “skipped” over for purposes of layoff. Young and Piazza explained that the basis for “skipping” certain employees and adopting the skipping and competency criteria set forth in Resolution No. 25-24 is District need. The District applied a bumping analysis and the competency and skipping criteria when determining the order of layoff.

25. Young and Piazza testified credibly at hearing regarding the mission and graduation requirements at RCP and RUP which support the District’s need to adopt the competency and skipping criteria. The mission of RCP and RUP is to prepare students to successfully graduate high school with the credits to enter the UC and CSU systems and be prepared to be successful in postsecondary work. This mission impacts the range of courses that RCP and RUP offer and the graduation requirements at both

schools. The District looks to the UC and CSU admissions requirements to determine necessary course offerings for any given school year, to ensure that the students who wish to apply to a UC or CSU school after graduation meet the minimum requirements for doing so.

26. To graduate from RCP and RUP, it is the District's policy that each student is required to take Integrated Mathematics 1, 2, and 3 (Math 1, 2, and 3), which reflects the typical sequence of courses and aligns with the UC and CSU admissions requirements. It is also recommended by the District (and aligned with UC and CSU recommendations) that each student take Math 4 (Precalculus, Calculus, or an Advanced Placement (AP) math class) to be prepared to take college courses. The District adopted the Competency Resolution to best meet the needs of the District and the District's high school students at RCP and RUP, by offering a full range of math classes consistent with the college preparatory focus of the schools and UC and CSU admission standards.

27. Of the students who graduated from RUP or RCP in 2023, approximately 123 students attended either a UC or CSU school. Of those who graduated in 2024, approximately 130 students matriculated into a UC or CSU school.

28. Currently, students can fulfill their Integrated Math 3 requirement by taking Financial Algebra. However, UC recently circulated a high school articulation bulletin that was received by the District notifying high schools that beginning in the 2025-2026 school year, certain high school level math courses will no longer meet eligibility for admissions into the UC system. Financial Algebra (a course that can be taught with a Single Subject: Foundational Level Mathematics Credential (Foundational Math Credential)) will no longer qualify as an Integrated Math 3 substitute for purposes of UC and CSU admissions requirements, and students must instead take

Integrated Math 3, or some higher level course to be eligible for CSU or UC admissions. This change will potentially impact the courses the District offers, particularly the number of Math 3 or higher level math classes needed, how the classes are staffed, and the number of staff needed who possess the credential required to teach these higher-level math classes.

29. In order to teach the full range of K-12 mathematics courses, including Integrated Math 1, 2, and 3, up to and including Calculus, a Single Subject: Mathematics Credential (Single Subject Math Credential, “advanced (math) credential” or “full (math) credential” as referred to at hearing), is required. On the other hand, a Foundational Math Credential authorizes its holders to teach only certain math subjects including K-12, Integrated Mathematics 1 and Integrated Mathematics 2, typically taken by 9th and 10th graders, and Financial Algebra. Foundational math credential holders cannot teach Integrated Mathematics 3 (typically taken by 11th graders), Precalculus, Calculus, or Advanced Placement (AP) Calculus.

30. Young reported that it is critical for the District to retain fully credentialed math teachers to provide flexibility in offering the full range of math courses that are consistent with their college preparatory focus to meet the needs of students and for the District’s scheduling purposes. To sustain the academic standards expected from these college preparatory high schools, and in light of its limited budget, the District adopted the competency criteria to ensure that its math teachers can teach the full range of math courses.

31. Young drafted the resolution regarding the competency and skipping criteria and it was reviewed by the District cabinet team, which included Piazza, the superintendent, assistant superintendent, director of special education and the CBO, prior to being adopted by the Board. The resolution establishes the definition of

competency for the purposes of layoffs, and establishes order of layoff criteria which provides for skipping over certificated employees possessing that criteria. Piazza believes the resolution meets the needs of the students because it allows the District to prioritize teachers who hold single subject math credentials which provides the District with more flexibility in providing the full range of college preparatory courses to the students.

32. Piazza has knowledge and experience regarding master scheduling and is involved in creating the master schedule for RUP and RCP. The master schedule is created by site administrators, the director of college and career, and a teacher at the site who is a member of the union, and reviewed by a consultant who has worked with the District and is experienced in master scheduling. The team consults the District's records as part of the process. Piazza explained that many factors go into master scheduling and that it can be extremely challenging due to the small size of the charter school, the small number of teachers properly credentialed to teach the classes, the preparation (prep) time the District needs to afford to teachers, enrollment data for the upcoming year, the electives that are offered based on student need and teacher credentialing and experience, and the number of students who fail a class during the first semester and need to retake it. Student need is the top priority in the process. Piazza believes that it is extremely important to have teachers with a single subject math credential who can teach the full range of high school math courses because it allows program flexibility when master scheduling to offer courses aligned with the college preparatory vision and mission of the school.

33. The District is still in the process of master scheduling for the 2025-2026 school year. The District intends to assign an upper-level math course to Carrie

Atherley, Carolina Duran, and Erica Olvera, three math teachers less senior than respondent Boylan, for the 2025-2026 school year.

DISTRICT'S BUMPING ANALYSIS RELATING TO SEAN KERR AND RESPONDENT BOYLAN

34. The District compiled a seniority list taking into account each certificated employee's name, permanency status, job class description, school assignment, site, credential, English Learner (EL) authorization, hire date and date of seniority (first date of paid service.) The seniority list was sent to certificated employees and to their union representatives in October 2024 to confirm its accuracy and/or request that their information be updated or corrected. The feedback provided was incorporated into the seniority list, and an updated copy was sent out to the employees and the union. The accuracy of the seniority list was stipulated to by the District and respondent Boylan at hearing with the following change. Anna Solano has a multiple subject credential and a math supplemental authorization allowing her to teach up to 9th grade math. Solano does not have a foundational math credential.

35. Young explained the process for determining which employees would receive layoff notices and in particular the analysis the District did in determining that a layoff notice would be issued to respondent Boylan. The District consulted the seniority list when determining which employees would receive layoff notices. Resolution No. 25-19 identified 2.0 FTE of an administrative position, Director of College and Career services, to be eliminated. Sean Kerr, currently a site administrator with an FTE of 1.0, is one of two District employees assigned to the Director of College and Career roles. Kerr works at RUP. Kerr held a teaching position with the District from August 12, 2009, to June 30, 2014, and transitioned into an administrative role on July 1, 2014. Kerr holds an Administrative Services credential and a Foundational Math

Credential. He does not hold a Single Subject Math Credential and cannot teach the full range of high school math classes.

36. Respondent Boylan has worked for the District since August 8, 2018. He is a certificated teacher at RUP and holds a Foundational Math Credential. He, like Kerr, does not hold a Single Subject Math Credential and cannot teach the full range of high school math classes. Respondent Boylan currently teaches Math 1 and Math 2 classes and the corresponding Support Math classes to students. Respondent Boylan is the least senior District employee who holds a Foundational Math Credential. Respondent Boylan does not hold any other credentials. Respondent Boylan has a degree in economics and a minor in environmental studies.

37. Kerr is more senior than respondent Boylan. In conducting its order of layoff analysis, the District determined that Kerr has bumping rights and would bump respondent Boylan from his position, based on Kerr's and respondent Boylan's seniority rights and credentials. The District also considered the competency and skipping criteria. For purposes of a school district's reduction in force, "bumping" occurs when a teacher whose assignment is slated for reduction or discontinuation instead moves into a different assignment (for which they are certificated and competent to teach) held by a less senior teacher, which in turn "bumps" the less senior teacher. In this case, there is no employee less senior to respondent Boylan holding a position that can be taught only with a Foundational Math Credential, as opposed to a Single Subject Math Credential. Marcus Hartley (seniority date: September 28, 2017) teaches at RUP and holds a Foundational Math Credential but he is more senior than respondent Boylan. Anna Solano (seniority date: August 29, 1996) teaches at RUP and holds a math authorization allowing her to teach 9th grade math and below, but she is more senior than respondent Boylan. Jason Castro (seniority

date: August 7, 2017) teaches at RUP and holds a Foundational Math Credential but he is more senior than respondent Boylan.

38. Other math teachers less senior than respondent Boylan hold Single Subject Math Credentials allowing them to teach the full range of high school math classes. Specifically, the District is retaining several math teachers less senior than respondent Boylan. Carrie Atherley has a seniority date of August 4, 2022, and is the least senior math teacher. Carolina Duran is a probationary employee, has a seniority date of August 23, 2021, and is the next least senior math teacher. Erica Olvera has a seniority date of August 10, 2020, and is also less senior than respondent Boylan. Atherley, Duran and Olvera each hold a Single Subject Math Credential authorizing them to teach the full range of high school math classes up to and including AP Calculus at RCP and RUP. Atherton and Duran are currently assigned as math teachers at RCP. Olvera is assigned as a math teacher at RUP. All three employees have college math degrees.

39. The District determined that neither Kerr nor Boylan can bump Atherley, Duran, or Olvera, because Kerr and respondent Boylan each have a Foundational Math Credential and cannot teach all the same courses that Atherley, Duran and Olvera can teach. Furthermore, there is no employee less senior to respondent Boylan holding a position that can be taught with only a Foundational Math Credential that Kerr or respondent Boylan could bump into for next year. As a result, the District determined that neither Kerr nor respondent Boylan was able to bump any less senior employee and served respondent Boylan with the layoff notice arising out of the 1.0 FTE layoff to Director of College and Career services for RUP, the service that Kerr currently provides.

40. Neither Atherley, Duran nor Olvera have stated that they will not be returning to teach for the District next year. The District intends on assigning all three of these teachers to teach courses within the full scope of their math credentials. Young reported that these positions require a full math credential because they are responsible for teaching courses such as Math 3, Precalculus, Calculus, and/or AP Calculus, which are integral to the college preparatory mission of the charter school.

41. Only two of the five math teachers currently teaching at RUP, Olvera and Margarito Loza Alcala (Loza), hold a Single Subject Math Credential. Young explained that the fact that Solano has a Math Supplemental Authorization allowing her to teach only up to and including 9th grade math significantly impacts the staffing schedule for the high school math classes because Solano can only teach Math 1 and Math 1 Support at the high school level.

42. Only two of the four math teachers currently teaching at RCP, Atherley and Duran, hold Single Subject Math Credentials. Castro holds a Foundational Math Credential. Emil Guzman holds an Intern Single Subject Math Credential, but Guzman resigned and will not be returning for the 2025-2026 year.

43. The order of seniority from most senior to least senior math teacher at RUP and RCP is Solano, Castro, Hartley, Loza, respondent Boylan, Olvera, Duran, Ackerley, and Guzman. Young explained that laying off one of the least senior teachers with a single subject math credential would reduce the number of teachers that can teach math course offerings for 11th and 12th grade students, which significantly impacts the District's ability to meet the students' needs for higher level math classes necessary to graduate and be UC and CSU ready. Young reported that teachers with single subject math credentials are highly qualified teachers that are very difficult to find and recruit.

44. Young advised respondent Boylan on March 7, 2025, that he was going to be laid off by the District.

45. The layoff for a Foundational Level Math teacher in Resolution No. 25-23 was specific to RCP because of the lack of need for the position based on enrollment. This was determined by the individuals that oversee the master schedule, including Piazza, the director of college and career Emily White, and the consultant. The reduction of 1.0 FTE for this position has been satisfied through attrition (Guzman's resignation) and the District is closing this vacancy pursuant to the Board's resolution. Young reported that the District issued precautionary layoff notices to Atherley and Duran because the District will be required to lay off another math teacher at the charter school due to the budget constraints in the event that respondent Boylan retains his position.

46. Each teacher in the math program has an eight-period day. Each teacher teaches six classes, and two of the eight periods are for prep. The single subject math teachers are assigned to teach certain classes for the 2024-2025 school year. For this school year, Loza is assigned to teach four Math 3 classes, Calculus and Statistics. Atherley is assigned to teach two Math 3 classes, two Math 1 classes, and two Math Support classes. Duran is assigned to teach Precalculus, three Math Support classes, Study Hall, and Avid 10. Olvera is assigned to teach two Math 2 classes, two Math Support classes, and two Financial Algebra classes.

47. Respondent Boylan proposes that the District keep him on as an employee, and instead lay off Atherley and have Duran teach her two advanced math classes because Atherley is the least senior math teacher, or lay off Duran and have Atherley teach Duran's advanced class, because Duran is a probationary employee and the next least senior math teacher. Respondent Boylan is credentialed and qualified to

teach six of the six courses that Olvera is teaching this year, four of the six courses that Duran is teaching this year, and four of the six courses that Atherley is teaching this year. Young reported that RCP needs both Duran and Atherley because they have full single subject credentials based on the students' needs for upper-level math classes and based on the District's need to provide a broad range of credentialed teachers to teach the upper-level math classes. She also noted that the District intends on assigning all three of these teachers to teach courses within the full scope of their math credentials.

48. Piazza believes the maximum class size for a math class is 32 students. As of April 18, 2025, for the 2024-2025 school year, there were some open spots in the upper-level math classes. The District anticipates an increase in enrollment in RUP's junior class of between one to 29 students based on the current number of sophomores. The District also anticipates an increased need for advanced math classes because Financial Algebra will no longer be accepted as a substitute for Math 3 for UC and CSU admissions purposes in the 2025-2026 school year.

49. Piazza confirmed that the District intends on assigning Atherley, Duran, and Olvera each to an upper division math class that cannot be taught by a foundational level math teacher, for the 2025-2026 school year.

Respondent's Evidence

TESTIMONY OF MATT JONES

50. Matt Jones, the chapter president of REA, testified credibly at hearing. This is his fourth year in this role. Jones teaches 7th grade math and science at RAMS. In his role as president of the union he speaks with District administrators and attends school board meetings often. Jones was present at the Board meeting on March 12,

2025, when the Board adopted the competency and skipping criteria. Jones learned about the criteria for the first time by attending the school board meeting and reading the agenda. Jones was surprised that the District had not given notice to the union that it would be considering adopting the criteria.

51. Jones feels that communication with Roseland leadership has been more challenging this year than in any other year of his union presidency. The competency and skipping criteria is an example of something that the union would expect to have advance notice of so that it could prepare its members for upcoming changes that could affect their employment. Young informed Jones of the certificated employees that would potentially be laid off for the 2025-2026 school year, including respondent Boylan, on February 15, 2025. Jones is aware that RCP is going to merge with RUP in the 2026-2027 school year.

RESPONDENT BOYLAN'S TESTIMONY AND CONTENTIONS

52. Respondent Boylan has worked for the District for seven years. He is a permanent certificated employee. He currently teaches courses including Integrated Math 1 and Math 2, and Math Support for Math 1 and Math 2. Respondent Boylan taught Financial Algebra during the 2018-2019 and 2019-2020 school years. Respondent Boylan is also able to teach Statistics and Consumer Math. Respondent Boylan has served as the Teacher-In-Charge of the Roseland Summer School Program for the last three years. He has also served as the Teacher-In-Charge at RUP. Respondent Boylan is passionate about and loves teaching math. Respondent Boylan was very surprised that he received a layoff notice from the District.

53. Respondent Boylan believes that it is important for high school students to take all required math level classes, particularly Math 1, to prepare for college.

Some students at RUP struggle to pass Math 1, and respondent Boylan has taught students Math 1 who have previously failed the class. RUP provides additional support for students taking Math 1 and Math 2 by providing Math Support classes. Respondent Boylan teaches the same students in each respective Math Support class that he teaches in Math 1 and Math 2.

54. RUP does not currently offer any AP math classes. Respondent Boylan reported that the administration does not think that enough students at RUP would want to take AP math classes to justify offering them. He reported that most students take Math 1, Math 2, and Math 3, and a fourth-year class such as Calculus, Statistics or Financial Algebra. Some students have taken Financial Algebra as a substitute for Math 3.

55. According to data for the 2024-2025 school year, as of April 18, 2025, class enrollment in foundational math classes at RUP is 570, and class enrollment in advanced math classes is 154, therefore Respondent Boylan argues that there is a greater need for teachers who teach foundational math classes than for teachers who teach advanced math. Respondent Boylan also argues that out of the classes that the math teachers less senior to him are teaching this year there are only three math classes he cannot teach.

56. Respondent Boylan is confused as to why he was not retained over Solano, who only has a Supplemental Math Authorization. He feels that the District did not act consistently in this regard because he can teach more high school math classes than Solano.

57. Respondent Boylan believes that there are a small number of students who will graduate this year from RUP who have not passed Math 3 based on conversations he has had with colleagues.

58. Respondent Boylan has not taken an Avid 10 summer class that would enable him to teach Avid 10.

59. Respondent Boylan has taken steps to obtain his Single Subject Math Credential. At the time of the hearing, he had passed two tests required for the credential, and had taken a third test that if passed will render him credentialed and competent to teach the full range of math courses once he applies for and obtains a full Single Subject Math Credential from the Commission on Teacher Credentialing. Respondent learned that he passed the subject matter CSET for Level III Advanced Math on April 25, 2025. However, respondent Boylan does not currently have a single subject math credential, nor did he have such a credential at the time the District conducted its bumping and skipping analysis. Any credential that he obtains in the future is immaterial to this matter because a certificated employee's credential at the time they received the layoff notice is determinative. (*Degener v. Governing Board of Wiseburn School District* (1977) 67 Cal.App.3d 689, 699.)

60. Respondent Boylan argues that his layoff violated Education Code section 44955 which requires that seniority is followed in layoff proceedings, and that his layoff notice should be rescinded. He argues that he (or Kerr) should have been able to bump Atherley, Duran or Olvera based on their seniority dates. A teacher with more seniority typically has greater rights to retain employment than a junior teacher. Specifically, a senior teacher whose position is discontinued has the right to a position held by a junior teacher (bumping) if the senior teacher is properly credentialed and competent. Pursuant to Education Code section 44955, subdivision (b), the District has

an obligation to reassign senior teachers who are losing their positions into positions held by junior teachers if the senior teacher has both the credentials and competence to occupy such positions. (*Lacy v. Richmond Unified School District* (1975) 13 Cal.3d 469, see also *Duax v. Kern Community College District* (1987) 196 Cal.App. 3d. 555, 563-564.) The seniority rule is not absolute if the senior teacher does not have the credentials and competency to occupy such a position, and a junior teacher with a needed credential or skills may be retained even if a more senior teacher is terminated. "[W]henver reduction in staff is necessitated . . . by reduction or discontinuation of a service, where competency is not demonstrated by a senior employee, a junior employee having the ability to serve the needs of a program may be retained by a district even though the junior employee's retention may result in the termination of a senior employee." (*Santa Clara Federation of Teachers, Local 2393 v. Governing Bd. of the Santa Clara Unified School Dist.* (1981) 116 Cal.App.3d 831, 834.)

61. Respondent Boylan's argument is rejected. Respondent Boylan does not hold the credential necessary to bump into any of the positions of the math teachers less senior than him, because they each hold a Single Subject Math Credential, and will be teaching in positions requiring that credential in the 2025-2026 school year. Furthermore, as previously noted, Education Code section 44955, subdivision (c), provides that the governing board shall make assignments and reassignments in such a manner that employees shall be retained to render any service which their seniority *and qualifications* entitle them to render. Furthermore, the District intends to assign the math teachers less senior to respondent Boylan to advanced math classes in the 2025-2026 school year.

62. Respondent Boylan also argues that based on the number of non-advanced math classes offered by the District during this school year the

competency and skipping criteria adopted by the District are not justified by a specific need, and are therefore arbitrary and capricious. He further argues that his layoff is improper where employees less senior than him, and in one case a probationary employee, were skipped over without the District proving a specific need to do so. Respondent submitted math enrollment information for RUP and RCP for the 2024-2025 school year. According to the data, as of April 18, 2025, class enrollment in foundational math classes is 889 (570 at RUP), and class enrollment in advanced math classes is 207 (154 at RUP). This takes into account that students taking both Math 1 and Foundational Support, and both Math 2 and Foundational Support, are each counted twice. Respondent Boylan argues that based on this data there is a greater need for foundational math classes than for advanced math classes. He also argues that out of the math classes that the math teachers less senior to him are teaching this year there are only three math courses that he cannot teach because they require an advanced math credential.

63. Districts have broad discretion to establish competency standards for purposes of a certificated layoff. (*Duax v. Kern Community College District* (1987) 196 Cal.App. 3d 555, 563-565, *Martin v. Kentfield School District* (1983) 35 Cal.3d 294, 299.) Such determinations involve discretionary decisions which are within the special competence of the school districts. (*Duax v. Kern Community College Dist., supra*, 196 Cal.App.3d at pp. 556-557.) Adoption of competency criteria is used by school districts to ensure that they can retain employees who have the necessary training and experience to best meet student and district needs, regardless of seniority. (*Martin v. Kentfield School District, supra*, 35 cal.3d 294 at p. 299.) Whether the board has acted arbitrarily and capriciously "is measured by the standard set by reason and reasonable people, bearing in mind that such a standard may permit a difference of opinion on

the same subject." (*Campbell Elementary Teachers Assn. v. Abbott* (1978) 76 Cal.App.3d 796, 808.)

64. A school district has discretion in determining whether an employee is certified and competent, as provided by Education Code section 44955, subdivision (b), to be reassigned and, as a result, displace a junior employee, as provided by subdivision (c). (*Duax v. Kern Community College Dist.*, *supra*, 196 Cal.App.3d 555 at p. 565.) The criteria used to determine a teacher's competence must be reasonable. (*Id.* at p. 566.) Competency criteria that consider the skills and qualifications required of the teacher are reasonable. (*Id.* at pp. 565-566.)

65. Respondent Boylan's argument is not persuasive. The District's competency and skipping criteria were reasonable and based on a specific need of the District and the students, not arbitrary and capricious, and were applied consistently. RCP and RUP are geared toward preparing students for college entry. Math 3 is a graduation requirement for all RCP and RUP students and an admission requirement for UC and CSU colleges and universities; and upper-level math courses above Math 3 are recommended for admission into these colleges and universities. Beginning in the 2025-2026 school year, students will no longer be able to take Financial Algebra as a substitute for Math 3 to be eligible for CSU or UC admission, thus increasing the need for Math 3 and upper-level math classes. Furthermore, the teachers with less seniority than respondent possess advanced math credentials in subjects that respondent Boylan is not qualified to teach, and the District plans to assign all the employees with lower seniority than respondent Boylan to teach an upper division, non-foundational math course for the 2025-2026 school year. The District's decision to adopt the competency and skipping criteria and to retain the less senior employees with the

appropriate credentials over respondent Boylan in order to serve the needs of the students and the District was proper.

66. Respondent Boylan argues that the competency and skipping criteria do not make sense and have been inconsistently applied because other math teachers, such as Solano, remain on the District payroll without the advanced math credential. This argument is rejected. The math teachers who have been retained by the District that do not possess a Single Subject Math Credential are senior to respondent Boylan.

67. Respondent Boylan suggests that math assignments should be restructured so that one of the teachers less senior to him can be laid off. This argument is not persuasive. The District has no obligation to reassign a senior teacher losing their position into a position held by a junior teacher if the senior teacher does not have the credentials and competency to occupy such a position. In addition, there is no obligation to reassign senior teachers who are not losing their positions in an effort to save junior teachers. (*Duax v. Kern Community College District, supra*, 196 Cal.App.3d 555, at p. 568.) Furthermore, districts cannot be forced to “divide a full-time position to accommodate [an employee’s] desire for a part-time position” to the extent Respondent Boylan is making such a suggestion here. (See *Hildebrandt v. St. Helena Unified School Dist.* (2009) 172 Cal.App.4th 334, 346, quoting *Murray v. Sonoma County Office of Education* (1989) 208 Cal.App.3d 456, 460.) Also, the District intends to assign each of the math teachers less senior than him to teach advanced math classes. For these reasons, respondent’s assertion that the District is required to rework the class assignments of other math teachers to avoid his layoff is rejected.

68. Based on the above, the District appropriately applied bumping rules and the competency and skipping criteria such that no employee with less seniority than

respondent Boylan is being retained to perform a service that he is certificated and competent to render. Respondent Boylan's layoff notice is proper.

69. This decision addresses all challenges respondent Boylan made to complainant's layoff. Any other contentions not specifically addressed in this decision are found to be without merit and are rejected.

Summary of Findings

70. There was no evidence that the District's decision to reduce particular services was fraudulent, arbitrary, or capricious.

71. The District's competency and skipping criteria were reasonable and based on a specific need of the District and the students, not arbitrary and capricious, and were properly applied in respondent Boylan's case.

72. The District appropriately issued a layoff notice to respondent Boylan.

73. No employee with less seniority than respondent Boylan is being retained to perform a service that respondent Boylan is certificated and competent to render. Additionally, there was no evidence that the District proposes to discontinue any services that are mandated by state or federal laws or regulations.

LEGAL CONCLUSIONS

1. All notice and jurisdictional requirements set forth in Education Code sections 44949 and 44955 were met.

2. Under Government Code section 11520, if a respondent fails to appear after timely filing a notice of participation, the agency involved may proceed with a default and take action.

3. "A school district may consider its financial circumstances in deciding whether to reduce or discontinue a particular kind of service." (*San Jose Teachers Assn. v. Allen* (1983) 144 Cal.App.3d 627, 631.) "A board's decision as to reduction or discontinuation of a particular kind of service is not tied in with any statistical computation, such as reduction in the number of students. The number of terminations made necessary by particular kinds of services reductions depends totally upon the district's decision as to how many services to reduce." (*Id.* at p. 635.) A school district's decision to reduce particular kinds of services must not be fraudulent, arbitrary, or capricious. (*Id.* at p. 637.) The services identified in the Resolution are particular kinds of services that can be reduced or discontinued under Education Code section 44955, and there was no evidence that the District's decision was fraudulent, arbitrary, or capricious. (Factual Finding 70.) Cause for the reduction or discontinuance of services relates solely to the welfare of the District's schools and pupils within the meaning of section 44949.

4. The District is authorized to reduce services within the meaning of Education Code section 44955, subdivision (b), "either by determining that a certain type of service to students shall not, thereafter, be performed at all by anyone, or it may 'reduce services' by determining that proffered services shall be reduced in extent because fewer employees are made available to deal with the pupils involved." (*Rutherford v. Bd. of Trustees* (1976) 64 Cal.App.3d 167, 178-179.)

5. Education Code sections 44949 and 44955 establish a seniority-based layoff procedure that mandates that employees shall be terminated in the inverse

order in which they were employed. Education Code section 44955, subdivision (b), provides that when a governing board reduces particular kinds of services resulting in a decrease in the number of certificated, permanent employees, the services of a permanent employee may not be terminated if another employee with less seniority is retained to render a service that the more senior employee is "certificated and competent to render." To accomplish this, "[t]he governing board shall make assignments and reassignments in such a manner that employees shall be retained to render any service which their seniority and qualifications entitle them to render." Education Code section 44955, subdivision (d)(1), provides that a school district may deviate from terminating a certificated employee in order of seniority (skipping) where the district demonstrates a specific need for personnel to teach a specific course or course of study, and the certificated employee proposed to be skipped has special training and experience necessary to teach that course of study, which others with more seniority do not possess.

6. The District appropriately accounted for positively-assured attrition when it determined which teachers to lay off. The District also appropriately applied bumping rules and the competency and skipping criteria such that no employee with less seniority than respondent Boylan is being retained to perform a service that he is certificated and competent to render. (Factual Findings 70-73.)

7. Respondent's arguments have been considered and rejected. As a result, cause exists to give respondent Boylan notice that his services will not be required for the 2025-2026 school year.

8. In this case, a continuance of seven days was granted. Therefore, the deadlines for submitting a proposed decision and serving a notice of termination were extended by seven days. (Ed. Code, §§ 44949, subd. (c)(3), 44955, subd. (c).)

RECOMMENDATION

The District's reduction in force is sustained as to respondent Brendan Boylan. The District may give final notice to respondent Boylan that his services will not be needed for the 2025-2026 school year.

DATE: **05/07/2025**

Michelle Dylan

MICHELLE DYLAN

Administrative Law Judge

Office of Administrative Hearings